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勤業眾信

三商美邦人壽保險股份有限公司

113年-115年隱含價值複核作業服務專案

服務合約書

勤業眾信管理顧問股份有限公司

Deloitte & Touche Consulting Co.

中華民國114年4月7日

機密文件

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勤業眾信

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三商美邦人壽保險股份有限公司
113 年-115 年隱含價值複核作業服務專案
服務合約書

立合約書人

甲方：三商美邦人壽保險股份有限公司
地址：臺北市內湖區石潭路 58 號 1 樓
統一編號：84443471

乙方：勤業眾信管理顧問股份有限公司
地址：臺北市信義區松仁路 100 號 21 樓
統一編號：80190853

主旨：謹提出勤業眾信管理顧問股份有限公司(以下簡稱乙方或勤業眾信或 Deloitte Entity) 對三商美邦人壽保險股份有限公司(以下簡稱甲方或客戶)提供「113 年-115 年隱含價值複核作業服務專案」之合約，敬請查照惠予同意並賜覆。

茲因甲方委託乙方辦理甲方 113 年-115 年隱含價值複核作業服務專案事宜(以下簡稱本專案)，雙方本於誠信原則，達成合約條款如下：

第一條：專案名稱及內容

一、名稱：三商美邦人壽保險股份有限公司 113 年-115 年隱含價值複核作業服務專案。

二、專案內容及時程：詳如附件二之工作說明書。

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第二條：合約總價

本合約總價金計新台幣 4,500,000 元整。含稅及差旅交通等代墊費用。

第三條：付款方式

依下列各款規定，甲方依據乙方提出發票，以現金支票或匯款交付乙方。

付款時程	付款比例	付款金額
本合約簽署時	16.7%	750,000
完成交付 113 年隱含價值複核作業服務報告	16.7%	750,000
完成交付 114 年隱含價值複核作業服務報告	33.3%	1,500,000
完成交付 115 年隱含價值複核作業服務報告	33.3%	1,500,000
總計	100.00%	4,500,000

第四條：責任

一、甲乙雙方於進行本專案過程中，應密切協調配合，以確保本專案之適用性與完整性並如期完成。

二、甲方應負之責任

1. 提供乙方相關配合事項及支援，依乙方之要求儘速並及時作出決定、確認及取得所須之管理階層核准，以利本專案之執行。在本專案持續期間，若導因於甲方或其他人力不能抗拒之任何因素，而非乙方參與專案人員之緣故而導致計劃實施延誤時，其責任不得歸咎於乙方。
2. 於乙方完成本專案文件之交付後五個工作日內完成驗收，如無提問視同驗收完成。
3. 依付款規定，撥付乙方費用。

三、乙方應負之責任

1. 依各階段服務之規劃，選派適當人員至甲乙雙方同意之指定地點負責進行本專案之執行。
2. 依本合約及附件之約定，完成本專案各階段工作，並依約交付文件。
3. 保證本合約之履行均為適法，無侵害他人之任何權利及利益。
4. 乙方承諾下列事項：
   (1) 於履行顧問義務須推薦第三方供應商或建議選商標準時，不得為乙方或該第三方供應商之利益，而推薦與乙方有協力廠商、策略聯盟等商業合作關係或具備形式上或實質上之關係企業之第三方供應商，或建議顯係針對該特定第三方供應商量身打造之選商標準。
   (2) 於具體推薦第三方供應商名單時，乙方應具體聲明與所推薦之第三方供應商並無上述之商業合作或關係企業等關係。若所聲明之內容有與事實不符之情事，因此致甲方受有損害（包括但不限於受主管機關裁罰或其他商譽上之損害等），乙方除應負賠償責任外，並應繳回與第三方供應商因此而獲得之利益（包括但不限於與同等服務或

產品於一般市場上價格間之溢價差額)。

(3) 如因產品或服務之特殊性而確有推薦與乙方具第(1)目關聯之第三方供應商時，乙方應事先向甲方說明並揭露相關必要資訊，並由甲方自行評估決定是否採用。若乙方未事先說明並揭露相關必要資訊，致甲方於採用該第三方供應商後始發現相關情事，乙方同意就甲方與該第三方供應商間之交易契約關係，與該第三方供應商共同對甲方負擔連帶責任；倘因此致甲方受有損害（包括但不限於受主管機關裁罰或其他商譽上之損害等)，乙方應與該第三方供應商負連帶賠償責任。

第五條：專案管理

一、本專案執行期間，甲方成立專案小組，由本專案相關部門指派人員參與，並由參與人員中指派一名專案協調人，以利本專案協調。本專案執行期間內，所有配合項目均應由專案協調人或由專案協調人指派專案組員與乙方之專案經理或專案經理指派專案人員互為此工作項目之連絡窗口。

二、本專案執行期間，甲乙雙方之專案有關人員應本著誠意原則，協力配合附件之時程，俾使本專案順利完成。

三、除合約另有約定外，甲方應就下列事項全權負責：

1. 作出管理決策及擔負管理功能。
2. 指派具備合適技能、知識與(或)經驗之人員(資深管理階層主管為佳)對本服務進行監督。
3. 評量乙方服務之充份性與結果。
4. 就本服務所衍生的相關結果承擔責任。
5. 建立並維持各種內部控制，包括但不限於對企業例行活動之監控。

第六條：遲延條款

一、如因可歸責甲方之事由致本專案時程延誤，本專案時程得順延之，對乙方因此所增加之服務費用，雙方另行議定。遲延階段所產生之雜項費用，悉由甲方負責。

二、如因可歸責乙方之事由致本專案時程延誤，本專案時程得順延之，遲延階段所產生之雜項費用，悉由乙方負責。

三、如不可歸責於甲乙雙方之事由致本專案時程延誤，雙方得重新商議專案時程，乙方仍應依雙方重新商議之時程內完成本專案，遲延階段所產生之雜項費用，由雙方各自負責。

第七條：文件遞送

一、除甲乙雙方另有約定外，乙方依本合約所應交付之文件得以電子檔案或書面為之。

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二、甲乙雙方得經由網際網路電子郵件互相聯繫或傳遞資料(以電子郵件傳送之機密資料應予加密)。惟甲乙任一方皆無法控管網際網路電子郵件的性能、可靠性、可用性以及安全性。故甲乙雙方不負責在雙方合理控管範圍之外，因任何網際網路電子郵件之遺漏、遲延、攔截、訛誤或變更所造成之任何損失、損害、費用、傷害或不便。

三、本合約所定之書面通知或交付事宜，以本合約所載地（住）址為準。一方之地（住）址若有變更，應以書面或電子郵件通知他方，否則他方按本合約所載之最後地（住）址所發送之通知或交付，視為已送達予該一方。

第八條：個人資料保護法遵循

甲方了解並同意乙方除因履行本專案之必要外，將不向甲方蒐集任何人之個人資料（包含但不限於自然人之姓名、出生年月日、國民身分證統一編號、護照號碼、特徵、指紋、婚姻、家庭、教育、職業、病歷、醫療、基因、性生活、健康檢查、犯罪前科、聯絡方式、財務情況、社會活動及其他得以直接或間接方式識別該個人之資料）。除本專案另有約定外，請甲方勿於交付乙方之文件或電子檔中附載任何個人資料；若甲方交付文件或電子檔中附載任何個人資料，則甲方應將其中記載之個人資料移除或為適當之遮蔽，再為交付。

乙方如因履行本專案之必要向甲方請求提供自然人之個人資料者，甲方應告知該自然人後，始予提供。乙方僅係受甲方之委託而就該個人資料為蒐集、處理或利用，因此甲方同意並將告知該自然人，其行使個人資料保護法上之各項當事人權利（包含就個人資料為請求閱覽、製發複本、更正補充、停止利用及刪除等），應向委託機關即甲方為之。

第九條：洗錢防制

甲方聲明指定乙方提供之服務及相關公費及代墊費用之支付均無涉洗錢防制法、資恐防制法所禁止之洗錢行為、資恐行為及相關特定犯罪。甲方同意：

(1) 據實配合乙方各項防制洗錢暨打擊資恐之有關措施；

(2) 如指定乙方提供之服務及相關公費及代墊費用之支付有涉及洗錢、資恐行為及特定犯罪之虞者，乙方得隨時終止本服務。

第十條：合約之修改

本合約之任何變更、修改或未規定事項，均需於雙方同意後，以書面換文方式為之；若本專案原訂需求修正或變更之部份非本合約所約定之服務範圍或交付項目時 (詳參附件二「工作說明書」)，則甲乙雙方同意依甲方需求所提出新增之服務範圍及交付項目，另行協議增補合約。

第十一條：合約之效力

一、自本合約終止日起，乙方不再依本合約提供甲方任何本合約所列之服務工作，則本合約終止前乙方已進行本專案所發生之服務公費及其他費用，甲方仍應核實支付乙方。倘甲方因本合約已預先給付相關服務費用，乙方應按執行比

例返還未提供服務之款項予甲方，並應交付已完成部分之工作成果及相關文件。

二、本合約之終止，不影響損害賠償請求權之行使。

第十二條：合約終止條款

乙方一旦發現本合約之存續可能因故損及勤業眾信、其關係企業或任一 Deloitte Touche Tohmatsu Limited 會員應維持之審計獨立性者，乙方得以書面通知甲方後立即終止本合約。

第十三條：合法性

本合約中如有任何條款因法令之規定而無效或無法執行，並不視為變更其他條款之規定，或影響其他條款之效力及強制力。

第十四條：完整合意

本合約經甲乙雙方合法簽署後，將取代甲乙雙方先前就本合約專案所為之所有口頭或書面之承諾或協議。

第十五條：合約書本

本合約正本一式二份，經甲乙雙方簽署後，正本由甲乙雙方依稅法規定各自貼足印花稅票後收執各一份。

第十六條：合約附件

本合約之附件為本合約之一部份，與本合約具同一效力。

一、附件一：「標準條款」

二、附件二：「工作說明書」。

三、附件三：「保密協議書」

四、附件四：「廠商誠信暨廉潔承諾書」

倘各附件與本合約本文之約定有任何不一致，以附件一「標準條款」為優先、其後適用優先順序依序為本合約本文、附件二「工作說明書」、附件三「保密協議書」及附件四「廠商誠信暨廉潔承諾書」。

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立合約書人：

甲　　方：三商美邦人壽保險股份有限公司
地　　址：臺北市內湖區石潭路 58 號 1 樓
簽約代表人：翁肇喜
職　　稱：董事長

乙　　方：勤業眾信管理顧問股份有限公司
地　　址：臺北市信義區松仁路 100 號 21 樓
簽約代表人：柯志賢
職　　稱：負責人

中　華　民　國　一　一　四　年　四　月　七　日

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附件一

標準條款

1. 付款

客戶應於勤業眾信提出帳單後三十日內付款。倘客戶延誤付款時，勤業眾信應先以書面催告客戶於合理期間內付款，如仍不獲付款時，勤業眾信得立即暫停或提前終止所有約定之工作事項，或提前終止本合約，雙方自暫停、解除或終止日起，得協議回復原狀，勤業眾信並得請求損害賠償，客戶不得有異議並須支付勤業眾信延遲付款之利息，以帳單日期三十日後起計息，計息方式採法定年利率百分之五或公告利率為最高者。但延誤付款非可歸責於客戶或有正當理由者，不在此限。

2. 終止

客戶或勤業眾信之一方如未履行本合約義務者，他方得提前終止本合約，並得請求損害賠償。除合約提前終止外，合約效力以客戶依付款之規定完成本合約費用之支付時終止。任何一方欲提前終止合約時，得不附理由隨時發出終止合約之書面通知予對方，三十日後生效，如因此致他方受有損害，應對他方負損害賠償責任。

3. 所有權

(1) 勤業眾信知識：勤業眾信保留依據約定之工作內容乙方所研發、取得之一切權利，以下統稱為“勤業眾信知識”，包括但不限於如下項目：

(i) 所使用、提供、修改、設計、取得之各項構思、概念、辦法、方法學、程序、處理、技術、及專有技術（包含功能、處理程序、系統、資料模型等）；

(ii) 格式、範本；

(iii) 任何涉及結構、軟體之序列與結構組織、使用者界面與畫面設定；

(iv) 非為特定目的之諮詢內容與軟體工具，效用與例行程序；

(v) 運作系統之邏輯、統一與方法。

(2) 交付品：除下一款「勤業眾信所有權」所示條件外，客戶於合約應付款項全部支付後得擁有勤業眾信因履行合約所明示交付之各項服務及文件（“交付品”）之所有權，勤業眾信授予客戶一項已全額支付的、非獨家的、免特許使用費的使用權，包括上一款之“勤業眾信知識”在內。

(3) 勤業眾信所有權：

(i) 除免特許使用費之使用權，未經勤業眾信事先書面同意，客戶不得援引、使用提及各項交付品。除另有約定，雙方完全瞭解並同意：

(a) 勤業眾信保留各項交付品中體現勤業眾信就本合約所開發或提供之一切及勤業眾信知識之專利權、商標、著作權或版權及其他各項智慧財產權之一切權利、所有權和權益。

(b) 勤業眾信有權以任何目的使用、修改、公開援引勤業眾信知識（包含但不限於提供服務、撰寫程式及資料予第三者）。

(ii) 勤業眾信不同意任何具有抵觸勤業眾信處理權自由之條件，包括：

(a) 勤業眾信以其單獨且必被視為正確之決定提供其他個人或團體諮詢或其他服務。

(b) 為自己或他人研發或製造材料與本項服務有競爭性但與交付品不近似

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之各項服務產品之權利。

4. 保證之限制

本合約為服務合約。勤業眾信應依照所開條款善盡履行義務。但勤業眾信否認任何其他明示或默示之保證，包括但不限於任何本服務具有商業性或適當性之保證。

5. 責任限制

(1) 除法院判決勤業眾信及其關聯事業之成員因故意或重大過失需負賠償責任以外，客戶同意勤業眾信及其關聯事業之成員，需負責之任何對於因任何工作委託書之服務所引起或與其有關之訴訟、請求、損害賠償、責任、費用、支出及損失以客戶所支付之公費為上限。

(2) 除因違反第 3.3.(i)或可歸責於客戶需負賠償責任以外，對於勤業眾信為客戶提供專業服務所引起第三人之索賠、所負債務、所生費用、支出及損失等，客戶均不須對勤業眾信及其人員負擔任何賠償或補償責任。

(3) 本條文規定應儘可能解釋為符合準據法。如遇法院判決本條款部份或全部無效，而導致勤業眾信需因本服務約定所致之任何損害賠償、訴訟或費用皆不得訴請勤業眾信負擔超過其應負擔之比例之賠償金額。

6. 合作

客戶於專案期間需提供勤業眾信因本服務合約所約定提供服務所需要之一切，包含提供勤業眾信合理、適當的設備、工作環境，及時並充份的接近資料、訊息、文件及人力資源。客戶因協助勤業眾信履行約定服務項目所需提供之人力資源及代表人之所有行為，與所提供之所有資料、訊息之正確性於可得控制之合理範圍內負責。倘因客戶所提供之資料不完整或不正確致使勤業眾信執行本服務合約之結果有重大影響時，勤業眾信不須負任何賠償責任。

7. 不可抗力

勤業眾信無須對於無法合理控制之狀況或因素所導致服務延遲、中斷負任何責任，包括但不限於客戶之任何疏漏、錯誤或失職（客戶之定義包括但不限於客戶或與客戶有控制從屬關係之個人或事業體之成員、員工、經理人、負責人、代理人）火災、意外災害、天災、罷工或勞工抗爭、糾紛，戰爭或暴動，任何政府機關或當局之法律、命令、判決，措施以及所造成之任何疏漏、錯誤或失職。

8. 獨立簽約人

雙方當事人瞭解並同意，本合約各當事人均為獨立簽約人，任一方並非、且不得被視為他方之代理人、經銷商、合夥人、受託人或代表人。任一方不得以他方代理人之身份行事，或直接主張或暗示其為他方之代理人，或以任何方式為他方或以他方之名義承擔或發生任何義務。

9. 保密責任及內部使用

(1) 客戶同意本合約中約定所提供之服務及交付事項，包括但不限於勤業眾信所交付之建議書、方法論、各項文件、程序、標準以及“勤業眾信知識”，僅可做為客戶為獲取資料之目的而做適法正當使用，除依法令或主管機關要求辦理或本合約另有約定外，不得做為其它任何用途，亦不得透露、複製、轉讓給第三

人或任第三人參考、使用、引述、發表。但客戶依法令或主管機關要求辦理揭露時，在合法且可行之情形下，應於揭露前通知勤業眾信並僅得於法令或主管機關要求之範圍內為必要之揭露。

(2) 勤業眾信因本合約所獲得與客戶相關的機密資訊，僅得在履行本合約之必要範圍內使用，倘未取得客戶之事前書面同意，勤業眾信不得向第三方透露。本項保密義務不適用於下列情形：

(i) 透過法律程序、規定，法院判決及政府機關單位行政程序，專業標準程序或因訴訟被要求出具之資訊，但勤業眾信在合法且可行情形下，應於提出該等資料前通知客戶，使客戶有機會得以採取必要措施避免或限制機密資訊之外流。

(ii) 以下範圍之資訊：

(a) 已成為一般大眾已知之資訊，包含但不限於透過任何公開管道或政府機關檔案資料所取得的資訊；

(b) 客戶向第三方透露之資訊於透露時並未為與本條款相同之限制；

(c) 勤業眾信遵循保密責任義務之情形下，由客戶以外的第三方所取得非禁制揭露或非列為機密的資訊；

(d) 於簽署本合約之前，勤業眾信所得知之未對客戶承擔保密義務之資訊；

(e) 勤業眾信根據客戶揭露之事項所獨立開發之資訊；

(3) 前項保密責任自本合約生效日起三年內繼續有效。

10. 資料儲存與防護

為有效執行本合約之服務，勤業眾信採用 Microsoft 365 提供之相關資訊服務及雲端儲存方案，相關區域資料中心設置於日本。勤業眾信確認上述資訊與雲端服務設有完整帳號權限管理、加密及取得 ISO 27001、ISO 27017 及 ISO 27018 認證之資安控制措施，且資安控制有效性經常接受外部稽核，以保障客戶資料之處理。

11. 本約效力

於本合約終止或期滿後，於本合約及本條款中雙方同意及擔保之條文，包括 1, 3, 4, 5, 6, 7, 8, 9, 11, 12, 13 及 14 持續有效。為本條之目的，本條所指稱之勤業眾信包含勤業眾信聯合會計師事務所、其會員事務所，以及其關係企業之合夥人、負責人、所有人、成員、員工、代理人、繼承人、受讓人。

12. 禁止讓與

未經另方當事人事先書面同意，任何一方不得轉讓或以其他方式轉移本合約之一部或全部之權利或義務予第三人或使第三人承擔（包含追訴權與求償權）。勤業眾信得於書面通知客戶並取得客戶書面同意後將本合約賦予勤業眾信之所有權利與義務一部或全部轉讓或轉包合約予勤業眾信之關係企業或其它已取得一部或全部勤業眾信之資產或營業之事業體。

13. 完整合意與修正

本合約（包含任何工作委託書及附件）構成本合約標的之完整合約，並取代所有其他與本合約標的有關之口頭或書面聲明、協議或合約，本合約之修正需經雙方書面同意並簽署始得有效，合約中倘有任何衝突、解釋、意義不明確或不一致之處，應

予以說明。除本合約另有約定外，本合約之通知應以書面為之，並以專人、掛號信函送達當事人於本合約指示之地址。書面通知以收到時視為送達，始得有效。

14. 準據法

本合約之生效、執行及其解釋，悉依中華民國法律規定，各當事人無條件同意以臺灣臺北地方法院為本合約所生爭議之合意管轄法院。

附件二

工作說明書 (Statement of Work)

1. Overview

Client has engaged Deloitte Consulting to perform a review of Embedded Value and Value of One Year's New Business based on the assumptions used under IFRS4.

2. Scope of Work

The scope of our engagement consists of three assignments as described below:

(i) Carry out a review of and provide a written opinion on the Client's calculation of Client's embedded value ("EV") as at 31 December 2024, and the underlying assumptions used therein in the calculations, with a view to the publication of the results. Included in the scope as well is a review of the Client's calculation of the value of the one year of new business ("V1NB") written over the period of 1 January 2024 to 31 December 2024, and analysis of change ("AOC") in the Value of In-Force Business ("VIF") between 31 December 2023 and 31 December 2024.

(ii) Carry out a review of and provide a written opinion on the Client's calculation of Client's embedded value ("EV") as at 31 December 2025, and the underlying assumptions used therein in the calculations, with a view to the publication of the results. Included in the scope as well is a review of the Client's calculation of the value of the one year of new business ("V1NB") written over the period of 1 January 2025 to 31 December 2025, and analysis of change ("AOC") in the Value of In-Force Business ("VIF") between 31 December 2024 and 31 December 2025.

(iii) Carry out a review of and provide a written opinion on the Client's calculation of Client's embedded value ("EV") as at 31 December 2026, and the underlying assumptions used therein in the calculations, with a view to the publication of the results. Included in the scope as well is a review of the Client's calculation of the value of the one year of new business ("V1NB") written over the period of 1 January 2026 to 31 December 2026, and analysis of change ("AOC") in the Value of In-Force Business ("VIF") between 31 December 2025 and 31 December 2026.

Note that we will not independently validate the actuarial projection model, policy data and net asset values used in Client's calculations as part of this engagement. Our opinion will therefore state that we have relied on the accuracy and completeness of the actuarial projection model, policy data and net asset values provided to us.

The scope of Services may be adjusted and agreed from time to time between Deloitte Entity and Client, including any adjustment needed due to the implementation of IFRS 17 and ICS, however any adjustment may result in an additional or reduced consulting fee. Any additional or reduced fees will be agreed between Deloitte Entity and Client before the work is performed.

Deloitte will not perform the advisory obligation of recommending third-party supplier or criteria of supplier selection in relation to the services of this engagement.

機密文件

The location of the Services to be provided is Taiwan.

3. Key Tasks

For each of the three assignments respectively under the scope of work, in addition to the responsibilities as set out in the Contract, the key tasks and each party's responsibilities in each project phase are as follows:

Key Tasks	Deloitte Consulting's Responsibilities	Client's Responsibilities
1. Review and analyse the supporting data for assumption values and provide an independent comment on the reasonableness of the assumptions as defined by Client. In doing this Deloitte Consulting will take into consideration both Client 's own recent experience and our own knowledge of the Taiwanese life insurance market. The review covers both the economic and portfolio assumptions; 2. Based on the book value and reported value of the net assets provided to us, check the method and results of the net asset value calculated by Client and any other adjustments outside of the actuarial projection model; 3. With respect to calculations and results, we will: • Perform sample checks on the material new products launched by Client as well as on the major in-force products. The sample checks will involve an independent calculation of the cash flows and statutory reserves of the selected policies and matching them against your results. We will agree with you at the beginning of each assignment which products fall under the scope of material new products and major in-force products; • Review, at a high level, changes to the actuarial projection model which have taken place since the prior valuation date; • Review Client's calculation of the cost of capital; • Review the reasonableness of Client's valuation results for the VIF, primarily by reviewing Client's analysis of the	1. Provide data request list 2. Initiate discussion or meeting if needed 3. Communicate the result of the external review with Client 4. Prepare documents based on the result of the external review	1. Set the assumptions for the valuation and provide us with the supporting evidence and analyses underlying the assumptions 2. Perform the calculation of the EV, V1NB and AOC 3. Carry out initial checks and review of the results 4. Document your approach, checks and findings to assist us with our review 5. Provide us with all necessary reasonable information we require and answer any reasonable queries we may have during the review in a timely and efficient fashion 6. Be responsible for the completeness and correctness of all such information

Key Tasks	Deloitte Consulting's Responsibilities	Client's Responsibilities
emergence of projected cash flows, statutory reserves and statutory profits by major line of business, the VIF shall be based on traditional embedded value ("TEV") approach where time value of embedded options and guarantees are not explicitly measured; • Review the reasonableness of Client's valuation results for the V1NB, primarily by reviewing Client's calculation of profit margin by individual product and the emergence of projected cash flows, statutory reserves and statutory profits by major line of business, the V1NB shall be based on traditional embedded value ("TEV") approach where time value of embedded options and guarantees are not explicitly measured; • Review Client's analysis of change in the VIF; 4. Prepare an opinion letter; 5. Prepare a report for Client's management documenting the findings from our review; 6. Present our findings to Client; and 7. Discuss and agree with Client with respect to the publication of the EV results.		

4. Work Product

In each project phase, the following Work Product will be provided:

Key Work Product/Contents	Work Product/Document Format
Our final advice in the form of an opinion letter which may be released to the press and the public	PDF document
A report documenting our findings from the review	PDF document

4.1 Work Product Acceptance

For each formal Work Product from Deloitte Consulting to Client under the Contract, the Work Product acceptance process will be:

(a) Deloitte Consulting's Project Manager will deliver the Work Product to Client's designated Project Manager.
(b) Client's Project Manager will arrange for the proper personnel in Client's organization to review the Work Product. He/she will then consolidate all feedbacks in writing back to Deloitte Consulting's Project Manager, indicating whether the Work Product is accepted or rejected.
(c) In the case of rejection, the feedbacks should describe the specific instances where the Work Product does not materially meet Client's requirements and the necessary corrections required.
(d) The feedbacks to Deloitte Consulting shall be provided by Client within five (5) business days upon receiving the Work Product. Otherwise, the Work Product shall be deemed accepted by Client.
(e) Deloitte Consulting's Project Manager will specify the plans to correct each rejection instance in writing to Client.
(f) Deloitte Consulting will make corrections to the Work Product based on the feedbacks provided by Client. If, in the judgment of either Deloitte Consulting's or Client's Project Manager, the changes required are beyond the scope of the original Appendix 1 or extensive enough to warrant, the changes will be handled in accordance with the Change Management process.

5. Project Timeline

A detailed project plan will be developed during project planning phase. The following dates represent estimated project milestone dates and may be subjected to change as a result of the agreed detailed project plan:

The completion dates of each of the three assignments are expected to be
(i) The date of Investor Relations meeting in 2025,
(ii) The date of Investor Relations meeting in 2026,
(iii) The date of Investor Relations meeting in 2027.

The final report documenting our findings from the review will follow the release date of the EV in each assignment.

6. Assumptions

In addition to the assumptions stated elsewhere in the Contract, the following are some of the assumptions and expectations (the "Project Assumptions") upon which Deloitte Consulting has relied in agreeing to perform the Services and on which Deloitte Consulting's fee is based. Any deviation from the Project Assumptions may cause changes to the timeline, fees and expenses, Work Product, level of effort required, or otherwise impact Deloitte Consulting's performance of the Services.

(a) Client will provide employee(s) to be part of the engagement team as and when required to assist in the execution of project tasks and activities that have been assigned.

(b) Client will ensure that Client's key personnel are available to make decisions, provide timely responses to queries and/or requests for information for the purpose and intent of this engagement.
(c) Client will inform Deloitte Consulting of relevant changes to the engagement in a timely manner.
(d) The service fees have been estimated based on standard business days from Monday to Friday, forty (40) hours per week (9:00am to 6:00pm), excluding Saturday, Sunday, Public Holiday and occasions when force majeure events occur).
(e) Client will provide accurate and complete data or information in a predefined format, or other requirement specifications as requested.

7. Change Management

Changes sometimes arise that require efforts beyond what was initially anticipated. If this should occur, Deloitte Consulting will discuss any changes with Client prior to performing any additional work. Either party may request changes to the Services, Work Product, and/or any other aspect of the Contract through a written change request ("Change Request"). Promptly thereafter, the parties will discuss the impact of the Change Request on the Services and Work Product including the fees, timeline, and other terms of the Contract. Any changes to the Contract agreed upon by the parties will be set forth in a change order or supplementary agreement signed by the parties. Once a change order or supplementary agreement is signed, it will amend, and become part of, the Contract. Neither party is obligated to change the Services, Work Product, or any other aspect of the Contract unless a change order or supplementary agreement for such change has been signed by both parties. In the event that Client fails to meet Client's obligations under the Contract, or an assumption proves to be invalid, and such event adversely impacts Deloitte Consulting, the parties will agree on a change order or supplementary agreement to equitably adjust the Contract to eliminate such adverse impact. Deloitte Consulting will notify Client within a reasonable period of time after becoming aware of such an event. If the parties are unable to agree on such a change order or supplementary agreement within fourteen (14) business days of such notice, Deloitte Consulting may, at Deloitte Consulting's option, suspend or terminate the Services upon written notice to Client.

Mutual Non-disclosure Agreement

This **Mutual Nondisclosure Agreement** (the "**Agreement**") is entered into as of the date of the last signature ("**Effective Date**") by and between Mercuries Life Insurance Co., Ltd. ("**Mercuries**") and the entity listed in the signature block below ("**Company**"). Mercuries and Company are each a "**Party**" and collectively, the "**Parties.**"

1 Introduction. The Parties have entered or propose to enter into discussions in order to explore a possible transaction for 113年-115年隱含價值複核作業 between the Parties (the "**Purpose**"). In connection with the Purpose, a Party may disclose to the other Party information of a confidential nature. In order to prevent unauthorized disclosure or use of such information the parties have entered into this Agreement.

2 Confidential Information. As used in this Agreement, "**Confidential Information**" means any information relating to the Purpose and other non-public information provided by the Discloser to the Recipient, any time during the term of this Agreement, whether relating to the Discloser and/or, any form or media.

3 Use of Confidential Information.

3.1 A party receiving Confidential Information ("**Recipient**") from the other party (the "**Discloser**") shall keep Confidential Information strictly confidential and not disclose such Confidential Information to any third party without the Discloser's prior written consent. The Recipient shall treat such Confidential Information with the same degree of care that it treats its own Confidential Information, but in no event less than a reasonable degree of care.

3.2 The Recipient may only use the Confidential Information for the Purpose and shall not use the Confidential Information for any other purpose whatsoever.

3.3 The Recipient may disclose the Confidential Information only to its directors, officers, employees, agents, consultants, affiliates ("**Representatives**") on a strictly "need-to-know" basis. The Recipient shall ensure that Representatives are bound by obligations no less extensive than those set out in this Agreement. The Recipient shall be liable to the Discloser pursuant to the provisions set forth in this Agreement for any breach by its Representatives.

3.4 Confidential Information shall not include information that (a) was known to the Recipient prior to the time of disclosure by the Discloser; (b) was in the public domain prior to the time of execution of this Agreement, or which comes into the public domain through no fault or breach of the Agreement by the Recipient; (c) becomes known to the Recipient without restriction, from a source other than the Discloser, without breach of this Agreement by the Recipient and otherwise not in violation of the Discloser's rights; or (d) has been independently developed by the Recipient without reference to or use of the Confidential Information.

4 Right to Notice. In the event a Recipient receives a request to release Confidential Information pursuant to a court order, subpoena, or other governmental authority, Recipient shall provide Discloser with prompt written notice in order to permit Discloser to either consent to the disclosure or seek a protective order or other appropriate remedy to the extent permitted by law. Recipient shall limit the disclosure of Confidential Information to the greatest extent possible under the circumstances.

5 Return of Confidential Information. Upon the Discloser's request, the Recipient shall promptly return or, at the Discloser's option, destroy all documents containing Confidential Information and any other documents, specifications, data or information of any nature whatsoever based on or relating to Confidential Information. Upon the request of the Discloser, an officer of the Recipient shall promptly certify in writing that such destruction has been completed. However, the Recipient may, subject to the confidential obligations hereunder, retain a copy of such Confidential Information or any documents to evidence any work done by the Recipient in connection with the Purpose of this Agreement.

6 No License. Any and all rights to the Confidential Information, including but not limited to copyright, trademarks, patents and any other intellectual property rights, shall remain the property of the Discloser. No license to or in any of the Confidential Information is hereby granted directly or indirectly or implied in any way whatsoever.

7 Independent Contractors. The Parties are independent contractors, and this Agreement imposes no obligation on either Party to proceed with any business transaction or agreement and does not create any agency or partnership of any kind between the Parties.

8 Term. The Parties' confidentiality obligations shall become effective on the Effective Date set forth below and shall continue for three (3) years.

9 No-Solicitation. The Recipient undertakes that (a) no contract, direct or indirect, will be made by any of its Representatives with any executive, member of staff, or shareholder of the Discloser unless expressly authorized by the authorized Representative of the Discloser and (b) it will not, during and for a period of two (2) years from termination of this Agreement, solicit any executive, employee or officer of the Discloser with a view to offering them employment or any other business offer, whether directly or indirectly.

10 Disclaimer. Each Party discloses its Confidential Information without any warranty as to the correctness or completeness of the Confidential Information, express or implied, of any kind. The Discloser shall not be liable for any costs or damages whatsoever incurred to the Recipient or any third party arising out of the correctness or completeness of the Confidential Information.

11 Amendments; Entire Agreement. Any amendments to this Agreement must be made in writing and signed by both Parties in order to be valid. This Agreement constitutes the entire agreement between the Parties with respect to the Purpose and supersedes all prior oral or written agreements between the Parties.

12 Counterparts; No Assignment. This Agreement may be executed in counterparts, and via facsimile and/or pdf. Neither Party may assign or transfer this Agreement without the written consent of the other Party, not to be unreasonably withheld.

13 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of Republic of China (Taiwan), without regard to its conflict of laws provisions. The parties further agree that any dispute, claim or controversy arising out of or relating to this Agreement or the breach, termination, enforcement or interpretation thereof shall be submmited to the exclusive jurisdiction of the Taiwan Taipei Distrcit Court.

14 Equitable Relief. Both Parties acknowledge that breach of this Agreement may cause irreparable harm to the other Party. Therefore, in addition to any other remedies available to it, a non-breaching Party may obtain injunctive relief in the event of any breach or alleged breach of this Agreement without proving actual damages if the court thinks fit.

15 Notices. Any notice hereunder will be effective upon receipt and must be given in writing and delivered to the other party at its address given herein and via e-mail.

Mercuries Life Insurance Co., Ltd.
No.58, Shitan Rd., Neihu Dist. Taipei 114057 Taiwan, R.O.C.
BY:
TITLE:
SIGN:

COMPANY: Deloitte & Touche Consulting Co.
21F., No.100, Songren Rd., Xinyi Dist., Taipei 11073, Taiwan
BY: Jason Ke
TITLE: Representative
SIGN:

Effective Date: April 7, 2025
April 7, 2025

誠信暨廉潔承諾書

立承諾書人　勤業眾信管理顧問股份有限公司

作為三商美邦人壽保險股份有限公司（下稱「三商美邦公司」)之交易往來對象，立承諾書人特承諾遵守以下維護誠信廉潔之約定事項：

1. 定義

1.1「三商美邦公司」指三商美邦人壽保險股份有限公司及其現在與未來在國內外之分公司、子公司、關係企業或辦公室等營業組織。

1.2「利益」指任何有價值之事物，包括任何形式或名義之金錢、餽贈、佣金、職位、服務、優待、回扣等。但屬正常社交禮俗，且係偶發而無影響特定權利義務之虞時，不在此限。

2. 廉潔、誠信承諾

2.1 立承諾書人承諾其自身及其董事、監察人、經理人、受僱人、受任人、使用人、代理人與實質控制者，於執行「113-115 年度隱含價值複核作業服務專案」(以下稱「本專案」)業務時，不得直接或間接向三商美邦公司承辦相關交易之人員、其親屬、其指定第三人或其他足可影響該承辦人員之人、代理商、承包商、供應商、公職人員或其他利害關係人提供、承諾、要求或收受任何形式之不正當利益。

2.2 如為履行合約之義務而涉及第三方之參與時，立承諾書人除應明確向三商美邦公司揭露自己與第三方間是否存在關係企業或其他合作關係外，亦不得為自己或該第三方之利益，而推薦與自己有商業合作關係，或在形式上或實質上有關係企業關係之第三方為供應商或為其制定對應之選商標準。

2.3 如三商美邦公司人員直接或間接對立承諾書人承辦相關交易之人員要求、收受、期約任何形式之不正利益，或三商美邦公司人員有直接或間接圖利自己、其親屬或其指定第三人之行為者，立承諾書人應立即向三商美邦公司檢舉並提供相關證據，立承諾書人願配合三商美邦公司進行相關調查。

2.4 立承諾書人承諾絕不為自己或他人之利益唆使或利誘三商美邦公司人員離職或違背職務。

2.5 立承諾書人承諾絕不為達交易目的而提供任何不實或虛偽之資訊。

2.6 立承諾書人如有客觀事證合理相信三商美邦公司所屬人員於執行職務時有涉及犯罪、舞弊或違法行為者，應檢具相關事證向三商美邦公司檢舉信箱提出檢舉。

檢舉信箱：whistleblower@mail.mli.com.tw

3. 違約責任

3.1 如立承諾書人執行本專案有違反與誠信經營規範相關之法律、本承諾書約定、或涉有其他不誠信行為時，三商美邦公司得立即停止、終止或解除與立承諾書人之交易關係而不負擔任何違約責任，並應賠償三商美邦公司因此所受損害，惟損害賠償以公費為上限。

3.2 因本承諾書所生之一切爭議，立承諾書人同意以中華民國法律為準據法，並以台灣台北地方法院為第一審管轄法院。

此致

三商美邦人壽保險股份有限公司

立承諾書人：勤業眾信管理顧問股份有限公司

法定代表人：柯志賢

地址：台北市信義區松仁路 100 號 21 樓

日期：中華民國 114 年 4 月 7 日